

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: FIRM NAME: STREET ADDRESS: CITY: STATE: ZIP CODE: TELEPHONE NO.: FAX NO.: EMAIL ADDRESS: ATTORNEY FOR (name):	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
CHILD'S NAME:	
CONTINUANCE—DEPENDENCY DETENTION HEARING	CASE NUMBER:

1. This matter came before the court on the
☐ original petition ☐ subsequent petition ☐ supplemental petition ☐ other (specify):
 filed on (date):

2. **Detention hearing**

- | | |
|-----------------------------|-------------------------------------|
| a. Date: | e. Court reporter (name): |
| b. Department: | f. Bailiff (name): |
| c. Judicial officer (name): | g. Interpreter (name and language): |
| d. Court clerk (name): | |

- | <u>h. Party (name):</u> | Present | <u>Attorney (name):</u> | Present | Appointed today |
|----------------------------------|--------------------------|-------------------------|--------------------------|--------------------------|
| (1) Child: | ☐ | | ☐ | ☐ |
| (2) Mother: | ☐ | | ☐ | ☐ |
| (3) Father—presumed: | ☐ | | ☐ | ☐ |
| (4) Father—biological: | ☐ | | ☐ | ☐ |
| (5) Father—alleged: | ☐ | | ☐ | ☐ |
| (6) Legal guardian: | ☐ | | ☐ | ☐ |
| (7) Indian custodian: | ☐ | | ☐ | ☐ |
| (8) De facto parent: | ☐ | | ☐ | ☐ |
| (9) County agency social worker: | ☐ | | ☐ | ☐ |
| (10) Tribal representative: | ☐ | | ☐ | ☐ |
| (11) Other (specify): | ☐ | | ☐ | ☐ |
- i. Others present in courtroom:
- (1) Court Appointed Special Advocate (CASA) volunteer (name):
- (2) Other (name):
- (3) Other (name):

THE COURT FINDS AND ORDERS:

3. ☐ The attorney appointed to represent the child as the child's attorney of record is also appointed as the child's Child Abuse Prevention and Treatment Act guardian ad litem.
4. ☐ a. The child will not benefit from representation by an attorney, and for the reasons stated on the record, the court finds
- (1) the child understands the nature of the proceedings;
 - (2) the child is able to communicate and advocate effectively with the court, other counsel, other parties, including social workers, and other professionals involved in the case; and
 - (3) under the circumstances of the case, the child would not gain any benefit from being represented by counsel.
- b. A Court Appointed Special Advocate is appointed for the child, and that person is also appointed as the child's Child Abuse Prevention and Treatment Act guardian ad litem.



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5. ☐ ☐ A Court Appointed Special Advocate is appointed for the child.

6. **The court has informed and advised the**

☐ ☐ mother ☐ ☐ biological father ☐ ☐ legal guardian ☐ ☐ child
☐ ☐ presumed father ☐ ☐ alleged father ☐ ☐ Indian custodian
☐ ☐ other (specify):

of the following:

- a. The right of the child and each parent, legal guardian, and Indian custodian to be present and to be represented by counsel at every stage of the proceedings. The court may appoint counsel subject to the court's right to seek reimbursement, if an individual is entitled to appointed counsel and the individual is financially unable to retain counsel.
- b. The right to be informed by the court of:
 - the contents of the petition;
 - the nature of and possible consequences of juvenile court proceedings;
 - the reasons for the initial detention and the purpose and scope of the detention hearing if the child is detained;
 - the right to have a child who is detained immediately returned to the home of the parent, legal guardian, or Indian custodian if the petition is not sustained;
 - that if the petition is sustained and the child is removed from the care of the parent, legal guardian, or Indian custodian, the time for services will commence on the date the petition is sustained or 60 days from the date of the initial removal, whichever is earlier;
 - that the time for services will not exceed 12 months for a child aged three years or over at the time of the initial removal; and
 - that the time for services will not exceed 6 months for a child under the age of three years at the time of the initial removal or for the member of a sibling group that includes such a child if the parent, legal guardian, or Indian custodian fails to participate regularly and make substantive progress in any court-ordered treatment program.
- c. The right to a hearing by the court on the issues presented by the petition.
- d. The right to assert the privilege against self-incrimination; to confront and cross-examine the persons who prepared reports or documents submitted to the court by the petitioner and the witnesses called to testify against the parent, legal guardian; or Indian custodian; to subpoena witnesses; and to present evidence on his or her own behalf.

7. The court has considered the information contained in

- a. ☐ ☐ the report of social worker dated:
- b. ☐ ☐ other (specify):
- c. ☐ ☐ other (specify):

and based on this information finds that continuance in the home is contrary to the child's welfare pending a further determination at the continued hearing.

8. ☐ ☐ The court grants the motion for continuance under Welfare and Institutions Code section 322 made by the

☐ ☐ mother ☐ ☐ biological father ☐ ☐ legal guardian ☐ ☐ child
☐ ☐ presumed father ☐ ☐ alleged father ☐ ☐ Indian custodian
☐ ☐ other (specify):

9. ☐ ☐ A motion for continuance was made by the

☐ ☐ mother ☐ ☐ biological father ☐ ☐ legal guardian ☐ ☐ child
☐ ☐ presumed father ☐ ☐ alleged father ☐ ☐ Indian custodian
☐ ☐ other (specify):

and good cause exists for granting the continuance in that

- a. ☐ ☐ notice of the date, time, and location of the hearing was not given to (name):
- b. ☐ ☐ the child did not receive proper notice of the right to attend the hearing.
- c. ☐ ☐ other (specify):

The motion for the continuance is granted.



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10. ☐ ☐ **Contact with the child is ordered as stated in** (check appropriate boxes and attach indicated forms):

- a. ☐ ☐ *Visitation Attachment: Parent, Legal Guardian, Indian Custodian, Other Important Person* (form JV-400).
 b. ☐ ☐ *Visitation Attachment: Sibling* (form JV-401).
 c. ☐ ☐ *Visitation Attachment: Grandparent* (form JV-402).

11. **Parentage**

- a. ☐ ☐ The court inquired of the child's parents present at the hearing and other appropriate persons present as to the identity and addresses of all presumed or alleged parents of the child. All alleged parents present during the hearing who had not previously submitted a *Statement Regarding Parentage (Juvenile)* (form JV-505) were provided with and ordered to complete form JV-505 and submit it to the court.
- b. ☐ ☐ The clerk of the court is ordered to provide the notice required by Welf. & Inst. Code, § 316.2 to
- (1) alleged parent (*name*):
 - (2) alleged parent (*name*):
 - (3) alleged parent (*name*):

12. **ICWA inquiry**

- a. On the record, the court has
- (1) ☐ ☐ asked each participant present at the hearing
 - whether the participant is aware of any information indicating that the child is a member or citizen of or eligible for membership or citizenship in an Indian tribe or Alaska Native village and, if yes, the name of the tribe or village;
 - whether the residence or domicile of the child, either of the child's parents, or the Indian custodian is on a reservation, rancheria, Alaska Native village, or other tribal trust land, and, if yes, the name of the tribe or village;
 - whether the child is or was ever a ward of a tribal court, and if yes, the name of the tribe or village; and
 - if the child, either of the child's parents, or the child's Indian custodian possesses an identification card indicating membership or citizenship in a tribe or Alaska Native village, and if so, the name of the tribe or village.
 - (2) ☐ ☐ instructed the participants to inform the court if they receive any information indicating that the child is a member or citizen or eligible for membership or citizenship in a tribe or Alaska Native village.
- b. Based on this inquiry and a review of the evidence of ICWA inquiry submitted for the hearing, (*check one*)
- (1) ☐ ☐ the court finds there is no reason to believe or reason to know the child is an Indian child. The agency has an affirmative and continuing duty of inquiry to determine whether the child is or may be an Indian child and to report to the court on its inquiry efforts.
 - (2) ☐ ☐ the court finds there is reason to believe the child is an Indian child, and (*check one*)
 - (a) ☐ ☐ the record includes evidence that the agency has complied with Welf. & Inst. Code, § 224.2(e), and there is no reason to know that the child is an Indian child; or
 - (b) ☐ ☐ the agency is ordered to complete further inquiry as required by Welf. & Inst. Code, § 224.2(e) and file with the court evidence of this inquiry, including all contacts with extended family members, tribes that the child may be affiliated with, the Bureau of Indian Affairs, the California Department of Social Services, and/or others.
 - (3) ☐ ☐ the court finds that there is reason to know that the child is an Indian child, and
 - (a) ☐ ☐ the agency has presented evidence in the record that it has exercised due diligence to identify and work with all of the tribes where the child may be a member or eligible for membership to verify the child's status; or
 - (b) ☐ ☐ the agency is required to exercise due diligence to identify and work with all of the tribes where the child may be a member or eligible for membership to verify the child's status and provide notice in accordance with Welf. & Inst. Code, § 224.3 and file proof of due diligence and notice with the court; and
 - (c) ☐ ☐ notice has been provided as required by law; and
 - (d) ☐ ☐ the court will treat the child as an Indian child until it is determined on the record that the child is not an Indian child.
 - (4) ☐ ☐ the court finds that the child is an Indian child and the Indian Child Welfare Act applies. The child is a member or citizen of, or eligible for membership or citizenship and a biological child of a member or citizen, of the tribe.



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13. The parents, legal guardians, and Indian custodians must keep the court, the agency, and their attorneys advised of their current addresses and telephone numbers and provide written notification of any changes to their mailing addresses. The parents, legal guardians, and Indian custodians present during the hearing who had not previously submitted a *Notification of Mailing Address* (form JV-140) or its equivalent were provided with and ordered to complete the form or its equivalent and to submit it to the court before leaving the courthouse today.

14. The ☐ mother ☐ biological father ☐ legal guardian
☐ presumed father ☐ alleged father ☐ Indian custodian
☐ other (specify):

must complete *Your Child's Health and Education* (form JV-225) or provide the necessary information for the county agency social worker to complete the form.

15. The ☐ mother ☐ biological father ☐ legal guardian
☐ presumed father ☐ alleged father ☐ Indian custodian
☐ other (specify):

were provided with a *Parental Notification of Indian Status* (form ICWA-020) and ordered to complete form ICWA-020 and to submit it to the court before leaving the courthouse today.

16. ☐ There is reason to know the child is an Indian child, and the county agency must provide notice under Welf. & Inst. Code, § 224.3 for any hearings that may result in the removal or foster care placement of the child, termination of parental rights, preadoptive placement, or adoptive placement. Proof of such notice must be filed with this court.

17. The ☐ mother ☐ biological father ☐ legal guardian
☐ presumed father ☐ alleged father ☐ Indian custodian
☐ other (specify):

must disclose to the county agency social worker the names, residences, and any known identifying information of any maternal or paternal relatives of the child.

18. ☐ **Other findings and orders**

- a. ☐ See attached.
b. ☐ (Specify):

19. **All parties are ordered to return for the continued hearing:**

Hearing date:	Time:	Dept:	Room:
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20. **All prior orders not in conflict with this order remain in full force and effect.**

21. Number of pages attached: _____

Date: _____

JUDICIAL OFFICER

Countersignature for detention orders (if necessary):

Date: _____

JUDGE